

SENATE BILL 1758

By Haile

AN ACT to amend Tennessee Code Annotated, Title 49
and Title 55, relative to school transportation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-2108, is amended by deleting subsection (a) and substituting instead the following:

(a)

(1) The local board of education shall require each school bus driver to:

(A) Annually submit to a physical and mental examination; or

(B) Annually verify that the school bus driver possesses a valid certificate issued by a medical examiner certified by the Federal Motor Carrier Safety Administration within the United States department of transportation who is listed on the National Registry of Certified Medical Examiners signifying that the school bus driver is medically qualified to operate a commercial motor vehicle pursuant to 49 C.F.R. Part 391.

(2)

(A) The local board shall require the results of a physical and mental examination of a school bus driver conducted for purposes of subdivision (a)(1)(A) be made on forms prescribed by the local board.

(B) The local board may rely upon records maintained by the department of safety to confirm a school bus driver's compliance with the requirements in subdivision (a)(1)(B).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.